

11. S-CV-0055842 Grand, Natalie v. Hosseini, Nima

Petition for Approval of Minor's Compromise of Claim

Petitioner Natalie Grand seeks to compromise the claim of minor Maximilian Grand.

The petition contains conflicting allegations. Item 12a specifies that there were \$500 in medical expenses "to be paid or reimbursed from proceeds of settlement or judgment" and 12b(1) specifies that \$500 has been paid by petitioner. However, item 14a specifies that petitioner "has paid none of the fees or expenses listed in items 12 and 13 for which reimbursement is requested." Additionally, the \$500 is not reflected in the calculated net balance at item 15 nor is it reflected in the summary at item 16.

The petition alleges that minor claimant was injured, received a dental evaluation, and is not recovered completely. The petition further alleges the minor will require one of two types of veneers once his teeth mature and the estimated cost is between \$5,000 and \$15,000, depending on the type of the veneer. Petitioner provides a receipt showing payment for the dental evaluation, but the information about the prognosis and when the veneers may be obtained is not supported by any letter from the dentist or any other dental provider. While it appears petitioner alleges no medical records exist, something more than bare allegations is required.

The court also observes that this petition was filed a mere two court days before the hearing and there is no evidence the petition was served on any other party.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is waived.

12. S-CV-0055953 Safe Nation Found. v. Wildlife Heritage Found.

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion To Be Relieved as Counsel

Counsel James A. Filippi II's motion to be relieved as counsel for plaintiff Safe Nation Foundation formerly known as Steelheart International Foundation is granted, effective upon the filing of a proof of service of the signed order after hearing on plaintiff.

As an entity defendant may not represent itself in court, plaintiff is advised it must obtain representation forthwith and that failure to do so may result in consequences including but not limited to the inability to defend against motions, the inability to prosecute the case, and ultimately possible dismissal of the action. (*CLD Construction, Inc. v. City of*

San Ramon (2004) 120 Cal.App.4th 1141; *Van Gundy v. Camelot Resorts, Inc.* (1983) 152 Cal.App.3d Supp. 29.)

13. S-CV-0057432 Galvez, Peter v. Elias, Shelby

Defendant is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Set Aside Entry of Default

Defendant Capitol City Real Estate, Inc. (“Capitol City”) moves to set aside the May 18, 2026 entry of default against it pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

A motion to set aside default “shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted[.]” (Code Civ. Proc., § 473, subd. (b).) Here, Capitol City did not provide any proposed responsive pleading with its moving papers. Rather than deny the motion outright due to this procedural deficiency, the court on its own motion continues this motion to **September 8, 2026 at 8:30 a.m. in Department 32**. Defendant Capitol City is directed to submit a proposed responsive pleading by August 21, 2026. Defendant Capitol City shall also file and serve a notice of continued hearing and file a proof of service by August 21, 2026. No additional briefing is permitted. The court intends to reach the substance of the motion at the continued hearing.

14. T-CV-0002823 In Re the Petition of No. Tahoe Pub. Utilities Dist.

Petition for Leave to File a Late Government Claim Pursuant to Government Code §946.6

Background

Petitioner alleges on July 18, 2024, a sewer main owned by petitioner was punctured underneath North Lake Boulevard in Carnelian Bay, California. Petitioner alleges the puncture was caused by a California Department of Transportation’s (Caltrans) contractor who was performing excavation activities in connection with a Caltrans project. Petitioner filed government claim alleging damages related to that puncture on July 18, 2025. (Opp’n at 2.)

Legal Standard

A suit for money or damages against a California public entity may not be brought “until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board . . .” (Gov. Code, § 945.4.) A claim for injury to real property must be presented within one year of the